

District- Dhaka

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Misc. Case No. _____ of 2024

In the matter of:

An application under section 498 of the Code of Criminal Procedure.

-And-

In the matter of:

Rahim Badsha @ Abdur Rahim

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Mohiuddin M.A. Kader, Advocate

.... For the accused-Petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 23rd January 2024

This application under Section 439 read with Section 435 of the Code of Criminal Procedure has been filed after delay of 309 days and on consideration of submissions made by the

learned Advocate for the petitioner we have condoned above delay and accepted the Criminal Revision for hearing.

This application at the instance of sole accused Rahim Badsha @ Abdur Rahim is directed against order No.76 dated 14.06.2022 passed by the learned Additional Sessions Judge, 7th Court, Dhaka in Sessions Case No.267 of 2011 corresponding to G.R. Case No.377 of 2010 arising out of Dhamrai Police Station Case No.13 dated 06.09.2010 under Section 302 of the Penal Code rejecting a petition for recall of PW9 S.M. Alamgir Hossain and PW10 Imam Hossain for cross examination.

Mr. Mohiuddin M.A. Kader, the learned Advocate for the petitioner submits that the learned Additional Session Judge allowed above petition of the petitioner for recall of PW9 S.M. Alamgir Hossain and PW10 Imam Hossain vide order No.67 dated 28.05.2019. But subsequently without cross examination of above two important witnesses the evidence was closed and the petition for recall of above witnesses was rejected.

Mr. Sujit Chatterjee, learned Advocate for the State submits that since in this case under Section 302 of the Penal Code and the petitioner is the sole accused and PW10 Imam Hossain is the Investigating Officer of this case for proper defence of the petitioner cross examination of PW10 Imam Hossain was required. But PW9 S.M. Alamgir Hossain was merely a recording officer of the case who did not give any direct evidence against the petitioner. In order to avoid further delay in the disposal of the case this petition may be disposed of by passing an appropriate order upon the learned Judge of the Trial Court below.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the record that in this case under Section 302 of the Penal Code the petitioner is the sole accused. PW9 S.M. Alamgir Hossain was the recording officer and PW10 Imam Hossain was the Investigating Officer who on conclusion of investigation submitted charge sheet against the petitioner. The petitioner was present in the Court but his

Advocate did not cross examine above two prosecution witnesses and a petition for recall of above two prosecution witnesses for cross examination was allowed by the learned Additional Session Judge, Thakurgaon on 28.05.2019 vide order No.67 but instead of implementation of above order the case was fixed for hearing of arguments which is not tenable in law.

Since PW9 S.M. Alamgir Hossain merely recorded this case his cross examination by the petitioner appears to not necessary. The learned Advocate for the petitioner frankly concedes that the ends of justice will be met if PW10 Imam Hossain the Investigating Officer of this case is recalled for cross examination by the defence.

On consideration of above materials on record and the submissions made by the learned Advocate for the petitioner we hold that the ends of justice will be met if the petitioner is given an opportunity to cross examine PW10 Imam Hossain without further delay.

We are directing the learned Additional Session Judge, 7th Court, Dhaka to recall PW10 Imam Hossain for cross

examination by the accused petitioner within 15(fifteen) days from the date of receipt of this order without granting any adjournment at the instance of the accused petitioner and after conclusion of cross examination of PW10 Imam Hossain he shall proceed with the conclusion of the trial of the case expeditiously.

Accordingly, this application under Section 439 read with Section 435 of the Code of Criminal Procedure is hereby disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER